

Satyawan Singh v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 24 January 2023 · WRIT - C No. 1759 of 2023 · **Disposed of; objections within fifteen days, then the procedure under the Code.**

HEADNOTE

A writ against a provisional assessment notice and a later demand in a theft case, brought because no final assessment order existed, was disposed of on the licensee's statement. The petitioner may file objections within fifteen days; the respondents must then proceed under the Electricity Supply Code, 2005. The validity of the notices was not decided.

FACTUAL SUMMARY

Satyawan Singh petitioned the Allahabad High Court against a notice of provisional assessment dated 24 December 2021 and a demand notice dated 29 September 2022 issued by respondent no. 2 in a theft-of-electricity case. He said the respondents were threatening to recover the amount although no final assessment order existed. Counsel for respondent no. 2 told the Court that the licensee was ready to decide an objection, if filed, and to finalize the proceeding under the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · Electricity Supply Code, 2005

theft provisional assessment — objection and finalization

HOLDING

Where the licensee states that it is ready to decide an objection to a provisional assessment in a theft case and to finalize the proceeding under the Electricity Supply Code, 2005, the writ is disposed of by permitting the consumer to file objections within fifteen days, upon which the licensee must proceed further in accordance with the procedure prescribed under the Code. ¶ 1

FLAG The order invokes the procedure prescribed under the Electricity Supply Code, 2005 and does not identify a clause number.

PRINCIPLE TAGS

theft-provisional-assessment-code-procedure On the licensee's statement that an objection to the theft provisional assessment would be decided and the proceeding finalized under the Electricity Supply Code, 2005, the writ was disposed of with fifteen days to object and a direction to proceed under the Code. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT NOTICE DATED 24.12.2021 AND THE DEMAND NOTICE DATED 29.09.2022, AND WHETHER THE AMOUNT COULD BE RECOVERED WITHOUT A FINAL ASSESSMENT ORDER.

Left to the objection and finalization procedure under the Code if the petitioner files objections within fifteen days. ¶ 1